will never reach me. Everybody knows that today. So, for this reason alone any trial against me is a farce.5

It was a triumphant performance. Becker recalled:

This statement is considered to be his best political speech. We two Western defence lawyers, Wolfgang Ziegler and me, were not involved in drafting it. The reading of this speech in court cost him a lot of strength. One had the impression that after giving this speech, his fighting reservoir was exhausted.6

Indeed, on the following day – 4 December – Honecker was wheeled to the prison clinic for a tomography and sonography. ‘It does not look good,’ he gloomily noted in his diary.

Meanwhile, his battle-weary lawyers again requested the trial be abandoned, but to no avail. Their application was rejected on 21 December. Honecker was troubled, too, by a second arrest warrant for alleged corruption, a possible sign that Prosecutors were getting jittery. ‘My lawyers continue to be optimistic,’ he noted that evening. ‘They have been since August. But this has shown repeatedly to be unfounded.’ However, media influence on public opinion increased, both in Germany and abroad. Der Spiegel – the magazine Honecker had despised so much began relentlessly working for his release. As a last throw of the dice, Honecker’s lawyers handed a complaint to the newly created Berlin Constitutional Court on 29 December stating that the decision to proceed violated their client’s fundamental right to human dignity – an overriding principle in the Constitution of Berlin, above even the state penal system and criminal justice. (It is based on Article 1, Paragraph 3 of the Berlin Constitution, and Article 1 of the Basic Law, according to which human dignity is inviolable. Shortly before Christmas, the Berlin Regional Court said Honecker would probably not survive the finish of his trial.)